

KALE REALTY

NEARLY 3 IN 4 SELLERS OF COLOR GET STEERED.

White sellers hear the same pitch about 1 in 4 times.

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OFF-MLS SELLERS OF COLOR LOST \$9,851 A SALE.

In majority-white neighborhoods, the loss was \$3,694. Zillow, 2025.

THE STEERING PATTERN JUST BECAME A FAIR HOUSING STORY, NOT JUST AN ANTITRUST ONE.

Zillow's research found 74 percent of Hispanic sellers and 73 percent of Black sellers said their agent recommended a private listing network, versus 24 percent of white sellers. Off-MLS sellers in communities of color lost a median \$9,851 a sale. In majority-white neighborhoods, the loss was \$3,694. In August 2026, the NAACP's president called private listings the next fight for fair housing, and Senator Warren told Compass and MRED that their partnership "increases risks of civil rights violations." Antitrust liability sits with the company. Fair housing exposure sits with the license that made the recommendation.

WHAT TO CHECK IN YOUR OWN FILES THIS MONTH:

- 1 Pull every listing where you recommended private or delayed marketing.**
Look for one thing: written proof, in the seller's own words, that they saw the exposure tradeoff and chose it anyway.
- 2 Get a same-day read on public versus private marketing before you recommend either.**
The steering pattern starts as a default, not a decision.
- 3 Document the "why," not just the "yes."**
A signed company form isn't the same as a seller who understood what limited marketing costs them.

THE TAKEAWAY

THE PRIVATE LISTING RECOMMENDATION ISN'T NEUTRAL.

Make sure the file proves it was the seller's choice,
not your default.